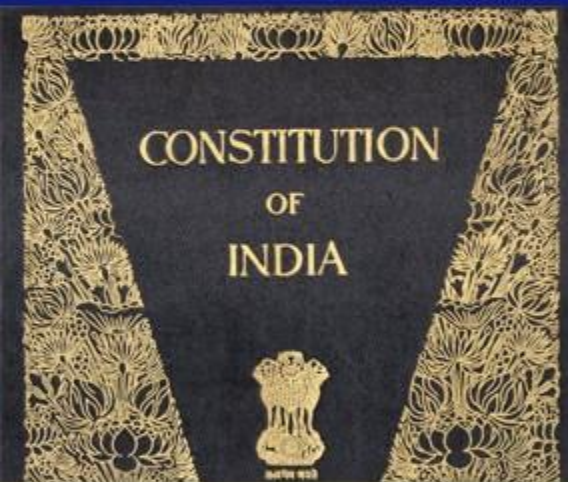


INDIAN POLITY



MODULE - 31

FUNDAMENTAL RIGHTS

▪ **ARTICLES 13 & 14**

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13

ARTICLE 13

- (1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.*
- (2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of this contravention, be void.*

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13

NOTES ON ARTICLE 13

1 The main object of Article 13 is to secure the **paramountcy of the Constitution** in regard to **fundamental rights**.

2 The **first clause** relates to the laws already existing in force and declares **the pre-Constitution laws are void to the extent** to which they are inconsistent with the fundamental rights.

3 The **second clause** relates to **post-Constitution laws** and prohibits the State from making a law which either takes away totally or abrogates in part a fundamental right.

4 The expression **“the State”** is to be construed in conformity with **Article 12** as judicially interpreted.

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13

ARTICLE 13

- (1) *All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.*
- (2) *The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of this contravention, be void.*

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13

ARTICLE 13

(3) In this article, unless the context otherwise requires,—

- a) “Law” includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of Law.*
- b) “Laws in Force” includes laws passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed, notwithstanding that any such law or any part thereof may not be then in operation either at all or in particular areas.*

(4) Nothing in this Article shall apply to any amendment of this Constitution made under Article 368.

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13

- 5** The ambit of the expression “law” is defined in Article 13(3)(a) itself, so as to ensure that the paramountcy of the Constitution extends also to:
- a) **Temporary laws**, such as Ordinances.
 - b) **Permanent Laws**
 - c) **Statutory instruments** in the nature of subordinate legislation, specifically described as “order, bye-law, rule, regulation, notification” having in the territory of India the force of law.
 - d) **Non-legislative sources of law**, that is to say, custom or usage having in the territory of India the force of Law.
- 6** The object of the definition in article 13 is to ensure that instruments emanating from any source of law-permanent or temporary, legislative or judgment or any other source **will pay homepage to the Constitutional provision relating to fundamental rights.**
- 7** At the same time, Clause (4) seeks to ensure that a Constitutional amendment does not fall within the definition of law in Article 13, and its validity cannot be challenged on the ground that it violates a fundamental right.

FUNDAMENTAL RIGHTS

ARTICLE 13

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS



- 8 But, it should be noted that fundamental rights as such, while not immune from Constitutional Amendment, may, in some cases, form part of the theory of basic features, enunciated in certain decisions by the Supreme Court.

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13



- 1 Article 13 declares that all laws that are inconsistent with or in derogation of any of the fundamental rights shall be void.
- 2 In other words, it expressively provides for the doctrine of judicial review.
- 3 This power has been conferred on the Supreme Court (Article 32) and the high courts (Article 226) that can declare a law unconstitutional and invalid on the ground of the contravention of any of the Fundamental Rights.

FUNDAMENTAL RIGHTS

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

ARTICLE 13



— PARLIAMENT OF INDIA —

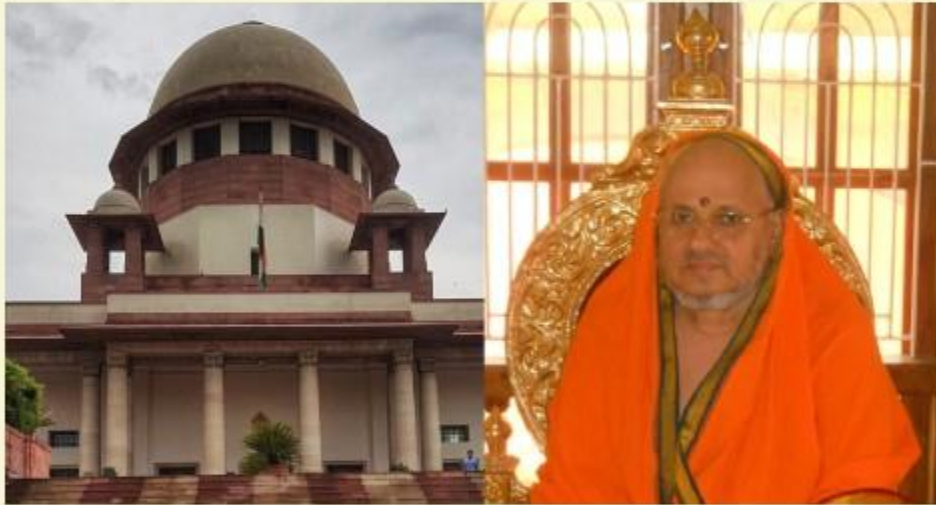
4 The term 'law' in Article 13 has been given a wide connotation so as to include the following:

- a) **Permanent laws** enacted by the Parliament or the state legislatures;
- b) **Temporary laws** like ordinances issued by the president or the state governors;
- c) **Statutory instruments** in the nature of delegated legislation (executive legislation) like order, bye-law, rule, regulation or notification;
- d) **Non-legislative sources of law**, that is, custom or usage having the force of law.

FUNDAMENTAL RIGHTS

ARTICLE 13

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS



5 Thus, not only a legislation but any of the above can be challenged in the courts as violating a Fundamental Right and hence, can be declared as void.

6 Further, Article 13 declares that a constitutional amendment is not a law and hence cannot be challenged. However, the Supreme Court held in the **Kesavananda Bharati case** (1973) that a Constitutional amendment can be challenged on the ground that it violates a fundamental right that forms a part of the 'basic structure' of the Constitution and hence, can be declared as void.

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EQUALITY BEFORE LAW AND EQUAL PROTECTION OF LAWS

Article 14- "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India".



- 1 This provision confers rights on all persons whether citizens or foreigners.
- 2 Moreover, the word 'person' includes legal persons, viz, statutory corporations, companies, registered societies or any other type of legal person.
- 3 The concept of 'equality before law' is of British origin while the concept of 'equal protection of laws' has been taken from the American Constitution.

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EQUALITY BEFORE LAW AND EQUAL PROTECTION OF LAWS

ARTICLE 14

- 4** The first concept, **equality before law**, connotes:
- a) The absence of any special privileges in favour of any person.
 - b) The equal subjection of all person to the ordinary law of the law administered by ordinary law courts
 - c) No person (whether rich or poor, high or low, official or non-official) is above the law.

- 5** The second concept, **equal protection of laws**, on the other hand, connotes:
- a) The equality of treatment under equal circumstances, both in the privileges conferred and liabilities imposed by the laws
 - b) The similar application of the same laws to all persons who are similarly situated.
 - c) The like should be treated alike without any discrimination.

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EQUALITY BEFORE LAW AND EQUAL PROTECTION OF LAWS

7 Thus, the former is a negative concept while the latter is a positive concept.

8 However, both of them aim at establishing equality of legal status, opportunity and justice.

9 The Supreme Court held that where equals and unequals are treated differently, Article 14 does not apply.

10 While Article 14 forbids class legislation, it permits reasonable classification of persons, objects and transactions by the law.

11 But the classifications should not be arbitrary, artificial or evasive. Rather, it should be based on an intelligible differential and substantial distinction.

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

RULE OF LAW

- 1 The concept of 'equality before law' is an element of the concept of 'Rule of Law', propounded by A.V.Dicey, the British jurist.



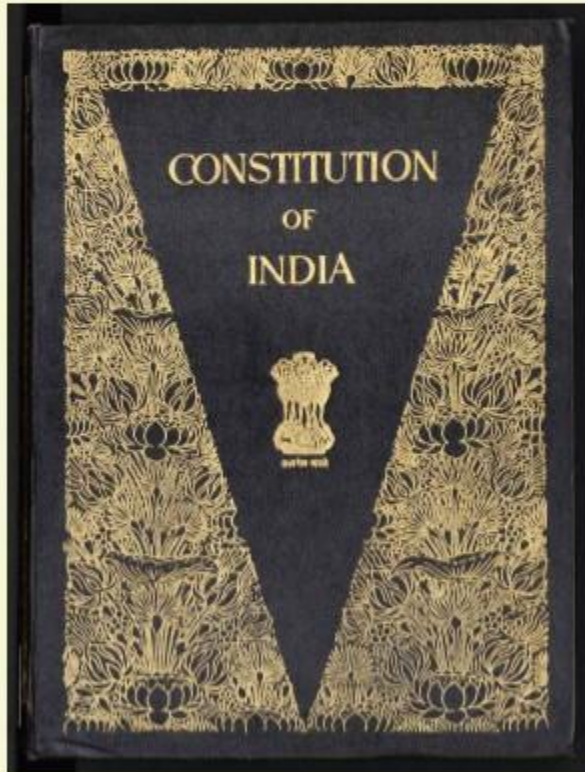
- 2 His concept has the following three elements or aspects:
 1. **Absence of arbitrary power**, that is, no man can be punished except for a breach of law.
 2. **Equality before the law**, that is, equal subjection of all citizens (rich or poor, high or low, official or non-official) to the ordinary law of the land administered by the ordinary law courts.
 3. The primacy of the rights of the individual, that is, the constitution is the **result of the rights of the individual as defined and enforced by the courts of law rather than the constitution being the source of the individual rights.**

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

RULE OF LAW



- 3 The first and the second elements are applicable to the Indian System and not the third one.
- 4 In the Indian System, the constitution is the source of the individual rights.
- 5 The Supreme Court held that the 'Rule of Law' as embodied in Article 14 is a 'basic feature' of the constitution.
- 6 Hence, it cannot be destroyed even by an amendment.

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EXCEPTIONS TO EQUALITY

The rule of equality before law is not absolute and there are constitutional and other exceptions to it. These are mentioned below:

- 1 The President of India and the Governor of States enjoy the following immunities (Article 361):
 - The President or the Governor is not answerable to any court for the exercise and performance of the powers and duties of his office.
 - No criminal proceedings shall be instituted or continued against the President or the Governor in any court during his term of office.
 - No process for the arrest or imprisonment of the President or the Governor shall be issued from any court during his term of office.
 - No civil proceedings against the President or the Governor shall be instituted during his term of office in any court in respect of any act done by him in his personal capacity, whether before or after he entered upon his office, until the expiration of two months next after notice has been delivered to him.

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EXCEPTIONS TO EQUALITY



Ravi Belagere and Anil Raj, two journalists against whom breach of privileges was invoked by Karnataka Legislature in June, 2017

2

No person shall be liable to any civil or criminal proceedings in any court in respect of the publication in a newspaper (or by radio or television) of a substantially true report of any proceedings of either House of Parliament or either House of the Legislature of a State (Article 361-A).

NOTE OF CAUTION!!

- *But, it must be noted that the above protection is only of immunity from court proceedings and not from action from the House itself in case it initiates proceedings for breach of privilege.*
- *The immunity is lost only if it is proved that the publication was made with malice or if it related to the proceedings of any secret meeting of the House.*

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EXCEPTIONS TO EQUALITY



— PARLIAMENT OF INDIA —

3 No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof (**Article 105**).

4 No member of the Legislature of a state shall be liable to any proceedings in any court in respect of anything said or any vote given by him in the Legislature or any committee thereof (**Article 194**).

ARTICLE 14

FUNDAMENTAL RIGHTS

RIGHT TO EQUALITY

EXCEPTIONS TO EQUALITY



5 Article 31-C is an exception to Article 14. It provides that the laws made by the state for implementing the Directive Principles contained in clause (b) or clause (c) of Article 39 cannot be challenged on the ground that they are violative of Article 14. The Supreme Court held that “**where Article 31-C comes in, Article 14 goes out**”.

6 The foreign sovereigns (rulers), ambassadors and **diplomats** enjoy immunity from criminal and civil proceedings.

7 The **UNO and its agencies** enjoy the diplomatic immunity.

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